

VII. Partition (6th COA)

The purpose of a partition action is “to sever the unity of possession.” (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) It is an equitable remedy that is governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) To properly allege a claim for partition, the plaintiff must plead: (1) the property description; (2) plaintiff’s property interests; (3) other persons’ claimed interests in the property that plaintiff reasonably believes the action will materially affect; (4) the estate for partitioning and a prayer for partitioning those interests; and (5) facts justifying any sought sale of the property. (Civ. Proc. Code, § 872.230.) Under the former statute, there was a requirement that the plaintiff were owners as joint tenants or tenants in common. (5 Witkin, *supra*, § 677.) However, under section 872.210(a), all that is required is that the plaintiff be: (1) a co-owner of personal property, or (2) an owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or estate therein is owned by several persons concurrently or in successive estates.

Bueno argues this cause of action fails because Paramo-Gonzalez cannot demonstrate she is a co-owner of the property or that she has any right to the property. Again, Bueno has presented evidence he is the only legal title owner of the home and he never transferred or agreed to transfer title to Paramo-Gonzalez. (Bueno Decl. ¶¶4-12.) Bueno has met his initial burden.

As noted above, to overcome the presumption that Bueno is the full title and beneficial owner of the property, Paramo-Gonzalez must rebut that presumption by clear and convincing proof. (Evidence Code §662.) Whether a claimant’s proof of a Marvin agreement contrary to the record title meets the clear and convincing evidence standard of proof cannot be decided by summary judgment. (*Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1073.) For this reason, Paramo-Gonzalez has established a triable issue of material fact; denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2306780	SOLIMAN VS GAD	MOTION TO COMPEL ATTENDANCE AT DEPOSITION AND TO PRODUCE DOCUMENTS

Tentative Ruling:

The Court GRANTS the unopposed Motion to Compel and awards relief to the moving party as requested in items 1 through 4 at pp. 16-17 of the Motion. The Court imposes monetary sanctions of \$1050 (3.5 x \$300) against plaintiffs and their counsel of record, jointly and severally, to be paid within thirty days of this Order.